



Novel Duty of Care

An introductory guide to the modern negligence law of England and Wales. Based on the uploaded lesson, with the cases checked against judgments.

1. First ask: is the legal question really new?

A **duty of care** is a legal obligation to take reasonable care towards someone in a particular situation. A **novel duty** is a proposed duty that established cases and principles do not yet answer. “Novel” describes the legal question, not merely an unusual fact or a new piece of technology. [2]

Invented comparison: A delivery robot knocks over a pedestrian while its operator controls it negligently. Robots are new, but a duty not to cause foreseeable physical injury through one's own activity may rest on established principles. By contrast, asking whether a new kind of information platform must protect distant investors from a particular financial loss may require examination of the purpose, relationship and analogous cases. Neither example determines liability without its full facts.

2. Begin with existing law

Courts usually start with decisions about similar legal relationships. For instance, drivers generally owe care to road users and medical services owe care to their patients. If an established principle answers the duty question, apply it. Then separately examine **breach**, **causation**, and legally recoverable **damage**. [2, 3]

Precedent is an earlier judicial decision whose rule matters to a later dispute. **Analogy** compares legally significant similarities between cases. **Incremental development** means developing a rule step by step from established categories, while considering distinctions that actually matter. [2]

3. The three Caparo considerations

Foreseeability: was the relevant harm reasonably predictable? **Proximity:** was the relationship sufficiently close in law, not just in metres? **Fair, just and reasonable:** is recognising the proposed duty consistent with a coherent scope of responsibility? These are useful considerations in a genuinely novel duty question, not a compulsory three-stage worksheet for every negligence case. [1, 2]

Claimant: the person suing. **Defendant:** the person or organisation sued. A duty is not a promise to prevent every accident, and foreseeable harm alone does not establish every duty.



Caparo: the origin of the discussion

4. Caparo Industries plc v Dickman [1990] 2 AC 605 [1]

Caparo bought shares in a public company, Fidelity, and pursued a takeover after seeing its audited accounts. It claimed that the accounts overstated Fidelity's financial position and sued the auditors for investment loss. The House of Lords considered whether the auditors owed Caparo a duty to protect it from that particular loss when using the published accounts for its investment decisions.

The accounts served a defined statutory purpose for shareholders collectively. The auditors had not undertaken to advise the investing public, nor each individual shareholder making a purchase decision. The foreseeable possibility that someone might read the accounts and invest was not enough to establish this claimed duty.

Who won, and why? The auditors won: the House of Lords allowed their appeal and rejected Caparo's claim of a duty to it as a potential investor or individual shareholder buying shares for investment. This was a preliminary duty question, not a judgment that every contested figure in the accounts had been proved true. [1]

5. What should we take from Caparo today?

Lord Bridge discussed foreseeability, proximity and whether a duty would be fair, just and reasonable. He also emphasised deciding new categories **incrementally and by analogy** with existing law. In 2018 the Supreme Court explained that treating this discussion as a universal, mechanical test misreads Caparo. [2]

Pure economic loss is financial loss not resulting from physical injury or damage to other property. Caparo involved this kind of loss. That context helps explain why the purpose of the audit and the particular relationship with the investors mattered so much.

Student checklist: What exactly was the information made for? To whom was it directed? How was it used? If a duty were recognised, what class of claimants and transactions would it cover? These questions identify the scope of the proposed duty; they do not assume that every auditor is immune from every claim.



Robinson: a familiar duty in a disputed setting

6. Robinson v Chief Constable of West Yorkshire Police [2018] UKSC 4 [2]

Officers attempted to arrest a suspected drug dealer on a busy street. During the struggle they collided with Mrs Robinson, a pedestrian, and she was injured. The trial judge found the officers negligent but thought the police immune. The Court of Appeal instead held that no duty was owed and also rejected breach.

The Supreme Court rejected the idea of general police immunity. The officers' **own actions** had caused foreseeable physical injury to a nearby person. Established principles about taking reasonable care not to cause personal injury applied; the court did not need to invent a new category of duty or apply a fresh Caparo worksheet. [2]

Who won, and why? Mrs Robinson won her Supreme Court appeal. The Chief Constable was liable because the officers owed and breached a duty of reasonable care, causing her injury. The case was returned for assessment of the **amount** of damages; the court did not announce the final sum. [2]

7. What about a truly novel case?

Where existing principles do not answer a proposed duty, the court examines the closest analogies and the relevant reasons for and against recognising it. It aims for a coherent rule, avoiding distinctions without a good reason and judging whether the proposed scope of responsibility is fair and reasonable. That is the limited setting in which the three familiar Caparo considerations can help. [2]

Invented contrast: A pedestrian is injured by a negligently operated vehicle in a novel colour or shape: ordinary physical-injury principles may suffice. A platform is asked to compensate every reader of a general public report for subsequent financial decisions: the relationship, purpose and scope of any proposed duty would need careful analysis. The word “new” cannot answer either problem by itself.



Darnley: an existing duty and misleading information

8. Darnley v Croydon Health Services NHS Trust [2018] UKSC 50 [3]

After a head injury, Mr Darnley went to a hospital accident and emergency department. He was told that he might wait four to five hours before a doctor looked at him. He was not told that patients with head injuries were usually seen by a triage nurse within about 30 minutes. He left after 19 minutes, later collapsed and suffered permanent brain damage.

Triage is the early assessment that helps staff decide who needs urgent attention. The Supreme Court treated the hospital's duty to patients presenting at A&E as an established category. It included taking reasonable care not to give misleading information about access to treatment. The fact that a receptionist, rather than a doctor, gave the information did not eliminate the hospital's duty.

The information was misleading and the court found its provision negligent. The trial judge had found that Mr Darnley would have stayed if told about the earlier triage, and that earlier treatment would have led to a near full recovery. Leaving without telling staff did not, on those findings, break the chain of causation. [3]

Who won, and why? Mr Darnley won his Supreme Court appeal. The NHS trust had breached an existing duty and its misleading information was causally connected to the injury on the findings made. The case was sent back to assess damages. It was not the creation of a new universal duty to give perfect estimates of every waiting time. [3]

9. Keep the questions distinct

Duty: did the hospital owe reasonable care to this patient? **Breach:** was the information unreasonably misleading? **Causation:** did the misinformation affect the decision to leave and the injury? Courts should not treat an argument about how precise a receptionist must be as though it necessarily denied the existence of an established duty. [3]

Compare the outcomes: Caparo denied the particular investor duty; Robinson applied established physical-injury principles to hold the police liable; Darnley applied an established patient duty to misleading information and found liability. Facts may be unusual while the duty remains familiar.



Check your understanding

1. Is a case legally novel simply because it involves a robot?

Answer: No. First ask whether established principles already govern the relevant relationship and injury.

2. Name the three Caparo considerations. Must a court apply them mechanically in every case?

Answer: Foreseeability, proximity, and whether a proposed duty is fair, just and reasonable. No: Robinson rejected a universal mechanical three-stage test.

3. Who won Caparo, and why?

Answer: The auditors won. Their published audit did not create the asserted duty to Caparo for its individual share-purchase decisions.

4. Did Mrs Robinson win by persuading the Supreme Court to invent a new duty?

Answer: No. She won because established principles applied to physical injury caused by the officers' own negligent conduct.

5. Did Mr Darnley have to prove the receptionist was a doctor before the hospital owed him care?

Answer: No. The hospital's duty to patients presenting at A&E was established; the misleading information was given through its receptionist.

6. Did leaving the department break causation in Darnley?

Answer: No. The findings showed he would have stayed with accurate information about triage and would have made a near full recovery with earlier treatment.

7. Was a final damages sum fixed by the Supreme Court in Robinson or Darnley?

Answer: No. Both cases were returned for assessment of the amount.

Primary sources

Judgments checked 4 October 2026; technology and platform examples are invented.

[1] Caparo Industries plc v Dickman [1990] 2 AC 605. House of Lords judgment; auditor-investor relationship and incremental development. Judgment reproduction. [Read judgment](#)

[2] Robinson [2018] UKSC 4. Official UK Supreme Court judgment, especially paras 21-30 on method and paras 68-81 on the result. [Read judgment](#)

[3] Darnley [2018] UKSC 50. Official UK Supreme Court judgment, especially paras 16-22 on duty, paras 25-31 on breach and causation, and para 32 on the order. [Read judgment](#)